

		Plaintiff shall give notice of the ruling.
59	<i>Ruiz vs. Grupo Frontera</i>	The Court overrules “Specially appearing” Defendants Grupo Frontera LLC, Juan J. Cantu, and Alberto Acosta’s Demurrer to Plaintiff Victor Hugo Ruiz III’s Complaint. Defendants argue that Plaintiff’s claims have been released and attach as Exhibit A to the Memorandum of Points and Authorities the purported “Termination and Release Agreement”. Defendants then argue that on December 31, 2023, Plaintiff executed a Termination and Release Agreement. Defendants ask for judgment on the merits of the Release. A demurrer can be used only to challenge defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) First, the Release is not authenticated and is attached without any testimony that it is what it purports to be. Rather, it is just affixed to the end of the Demurrer. Second, even if Defendants had requested judicial notice of the Release, it would have been denied. The court may not take judicial notice of the existence of a contract between private parties. (<i>Gould v. Maryland Sound Indus., Inc.</i> (1995) 31 Cal.App.4th 1137, 1145.) Rather, release is an affirmative defense that must be pleaded. (<i>Anderson v. Fitness Internat.,</i>